

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAGNOLLY BAUTISTA,

Petitioner

VS.

FRANKLIN MICHAEL TAMAYO ALVAREZ,

Respondent

) Case Number: FDV-25-818754

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

RESTITUTIONS RELATED TO DVRO

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Magnolly Bautista (Mother) and Respondent Franklin Michael Tamayo Alvarez (Father). They share one minor child: Thiago Tamaya Bautista (DOB: 4/12/15).
- 2) On 11/7/25, Mother filed a Request for Domestic Violence Restraining Order (DVRO) seeking protection from Father wherein she requested the following restitution (i.e., expenses caused by the abuse): (a) \$60 in medical co-pay paid to Kaiser; (b) \$500 in temporary necessities; and (c) an amount to be determined in Lyft expenses. Mother also checked the box for child support in her DVRO request.
- 3) On 12/31/25, the Court granted a Restraining Order After Hearing for a period of one-year wherein Mother is the protected party and Father is the restrained party. The minor child is not listed as a protected party; however, the Court issued custody and visitation orders. The matter was continued to 3/19/26 at 9 AM in Dept. 403 for the Court to adjudicate the financial issues.
- 4) On 3/17/26, Mother filed an update declaration asserting that she and the minor child fled their home on 10/20/25 without the car or any belongings. Mother states she was forced to use Lyft

1 and purchase necessities as a result. Mother lists the following total expenses she incurred: (a)
2 \$462.68 for Lyft; (b) \$312.12 at Ross for clothing and toys; and (c) 41.01 at Whole Foods for
3 food. Mother states that when she returned to the family's apartment to pick up her own and the
4 minor child's belongings all her valuables (such as brand name wallets and watches) were gone.

5 5) On 3/19/26, the matter was continued to 3/26/26 on the Court's own motion.

6 6) On 3/26/26, the matter was continued to 5/26/26 on the Court's own motion because a Spanish
7 interpreter was not available to assist with the hearing.

8 7) On 5/19/26, the matter was continued to 7/9/26 on the Court's own motion.

9 8) On 5/21/26, Mother filed Petitioner's Declaration in Support of Child Support, which includes a
10 proposed XSpouse calculation based on Father's asserted earning capacity (full-time San
11 Francisco minimum wage) given that Father failed to file an Income and Expense Declaration and
12 Mother knows that Father works as an Amazon driver.

13 **B. Findings and Order**

14 1) Family Code section 6200 codifies the Domestic Violence Prevention Act (DVPA), which seeks
15 to remedy domestic violence and provide separation to ensure the safety of the parties.

16 2) Under the DVPA, the Court can issue orders providing victims of domestic violence relief from
17 their financial obligations to prevent inability to separate or return to abuse out of economic
18 necessity (i.e., a lack of financial resources). (See section 6342; see also In re Marriage of J.Q. &
19 T.B. (2014) 223 Cal.App.4th 687, 702.)

20 3) Restitution under the DVPA is a statutory remedy only available to victims of domestic violence.
21 (Family Code section 6342(a).)

22 4) Here, the Court made a finding that Mother is a victim of domestic violence. See Restraining
23 Order After Hearing filed 12/31/25.

24 5) Mother asserts that she incurred a total of \$815.81 in expenses from fleeing the abuse because she
25 was forced to leave without the car or any belongings (\$462.68 for Lyft + \$312.12 at Ross for
26 clothing and toys + 41.01 at Whole Foods for food).

27 6) Accordingly, Mother's unopposed request for restitution in the amount of \$815.81 is GRANTED.
28 Father shall pay this balance in full by 8/9/26.

- 1 7) The Court finds good cause to continue Mother's request for child support as neither party filed
2 form FL-150 (Income and Expense Declaration).
- 3 8) Mother's request for child support is therefore **continued to 8/19/26 at 9 AM in Dept. 403**. At
4 least 10 days in advance of the hearing, both parties shall file and serve form FL-150 (Income and
5 Expense Declaration).
- 6 9) However, the Court further finds good cause to adopt Mother's proposed XSpouse calculation
7 attached to her 5/21/26 declaration in the interim, which imputes Father's with full-time San
8 Francisco minimum wage income (i.e., \$3,399 monthly) and is based on Mother earning \$3,024
9 in monthly income and paying \$68 in monthly union dues. Mother asserts, under penalty of
10 perjury, that Father works as an Amazon driver. Mother's proposed XSpouse calculation is
11 attached hereto and incorporated herein for convenience.
- 12 10) The Court finds imputation of full-time San Francisco minimum wage income to Father is
13 consistent with the best interests of the children, taking into consideration the overall welfare and
14 developmental needs of the child, and the time that parent spends with the child.
- 15 11) As such, effective 7/1/26, and on a temporary basis, Father owes Mother \$674 per month in child
16 support by the 1st of every month. Father shall pay Mother support for July 2026 by 7/16/26.
- 17 12) The Court reserves jurisdiction over recalculation of this child support award retroactive to
18 11/7/25 (i.e., the filing date of her Mother's Request for DVRO). The Court also reserves
19 jurisdiction over any child support arrears Father may owe to Mother retroactive to 11/7/25.
- 20 13) Counsel for Mother shall prepare Findings and Order After Hearing, which shall include as an
21 attachment form FL-342.
- 22 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
23 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
24 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
25 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
26 proposed order after hearing directly to the court. Failure to submit the order after hearing within
27 10 days may allow the other party to prepare a proposed order and submit it to the court in
28 accordance with CA Rules of Court, Rule 5.125(d).
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